

it is *primâ facie* a solemn, simple, and valid defence, and throws on the relessor the heavy *onus* of displacing it (c). In strict right, however, a trustee in the absence of special circumstances cannot insist upon a release under seal (d). But it has been held that an *executor*, though he cannot insist on a release from a pecuniary legatee (e), yet on the estate being wound up, has a right to a release from the residuary legatee (f).

King v. Mullins. — In one case (g), where the trust was by parol for A. for life, and on her death for B. and C., and the costs of the suit depended on the question whether the trustee ought, as required, to have transferred the sums on the joint receipt of A., B. and C., or whether he was right in refusing, unless they executed a release under seal, Vice Chancellor Kindersley decided that the trustee was entitled to a release on the grounds, first, that the trust was by parol, and secondly, that the time of payment, according to the tenor of the deed, was anticipated, as the tenant for life was still living. These reasons are not satisfactory. The circumstance that the trust was by parol, and therefore obscure, might have been an excuse for not paying at all, or ground for demanding an indemnity; but seems to afford no reason for requiring a release under seal, as distinguished from a simple receipt or acquittance in writing. Neither does the anticipation of the time appear to be material, for A., B. and [*359] C. were admitted to be the only *cestuis que *trust*, and their concurrence in the receipt was equivalent to a reduction into possession (a).

In another case, V. C. Wood observed, that every trustee had a right to have some sort of a discharge, perhaps not a *release*, unless the trust was created by an instrument *under*

(c) See *Fowler v. Wyatt*, 24 Beav. 232.

(d) *Chadwick v. Heatley*, 2 Coll. 137; *Fulton v. Gilmour*, Hill on Trustees, 604; *Re Wright's Trust*, 3 K. & J. 421; *Warter v. Anderson*, 11 Hare, 303; *Re Cater's Trust*, 25 Beav. 366; *Foligno's Mortgage*, 32 Beav. 131.

(e) *Re Fortune's Trust*, 4 I. R. Eq. 351.

(f) *King v. Mullins*, 1 Drew. 311.

(g) *King v. Mullins*, Vice Chancellor Kindersley, 21st Dec. 1852, M. S.; 1 Drew. 308.

[(a) See *Anson v. Potter*, 13 Ch. D. 141.]